

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
OFFICES, IDENTIFIERS, AND EVENTS — NOT A REAL FILING OR
PRESENTENCE REPORT COUNTERFACTUAL BRANCH — NEVER
FILED OR ENTERED ON THE ACTUAL DOCKET — ISOLATED
FICTIONAL DOCKET SYN-CA4-26-CR-4201-CF-DAY15-NEVER-FILED**

Never-Filed District Rule 4(b)(4) Findings and Order Declining Extension

Never-entered date: March 20, 2026 **Isolated synthetic docket:** SYN-CA4-26-CR-4201-CF-DAY15-NEVER-FILED **Never-filed document number:** 4

On limited remand, Judge Elara Venn considers the March 12 timing packet, the March 16 remand order, and Serrano's March 18 disclaimer. No hearing is necessary because the material facts are stipulated and no party identifies additional evidence.

Judgment was entered February 25. Excluding that day, the fourteenth day was March 11. The branch notice was first delivered directly to the district clerk on March 12. It was therefore received one day after the ordinary deadline in Rule 4(b)(1)(A).

Rule 4(b)(4) permits an extension, with or without a motion, only upon a finding of excusable neglect or good cause. Serrano requests no extension and offers no excuse. For the reasons on the following pages, the court finds neither excusable neglect nor good cause and declines to extend time. This order is limited to the isolated branch and was never entered on the actual district docket.

Findings on Filing and Calendar Predicates

The notice was delivered by counsel to the synthetic district clerk on March 12. No evidence shows an earlier deposit in an institution's internal mail system, so Rule 4(c) supplies no earlier filing date. The court finds that the direct receipt date is the only filing date within this branch.

No Rule 4(b)(3) motion was filed after judgment. No government notice altered Serrano's period. The clerk's office was accessible throughout March 11, a Wednesday, and no weekend or legal holiday affected the calculation. Neither a closure nor a filing-system inaccessibility order extended the last day.

The court or government gave no incorrect timing instruction after entry of judgment. No branch document was misdirected to another federal court, and no attempted March 11 submission failed. The actual source record is not evidence in this isolated matter except for the unchanged February 25 judgment date.

These findings establish a day-15 direct filing with no alternative timely date. They also show that the one-day delay did not result from a court-created obstacle. The remaining question is whether any other record fact supports the discretionary findings authorized by Rule 4(b)(4).

No Excusable Neglect or Good Cause

Serrano's March 18 statement expressly disclaims excusable neglect, good cause, and every factual excuse. He gives no reason for the delayed delivery and asks the court not to treat the notice as an extension motion. The fictional United States identifies no contrary circumstance.

Without an asserted cause, the court cannot make an affirmative finding that neglect was excusable. There is nothing to evaluate concerning the reason for delay, control over that reason, or a good-faith attempt to meet the date. A short delay alone does not supply the missing finding.

Good cause is likewise absent. No event beyond counsel's or Serrano's control prevented a March 11 filing. Clerk access remained available, and no institutional-mail, emergency, or technical event displaced direct receipt. The record therefore supplies no independent ground for relief.

The court does not create an equitable exception outside Rule 4(b)(4). It applies the extension text to the stipulated branch facts. This determination says nothing about the underlying conviction, sentence, waiver, role finding, or allocution claim, and it does not decide the appellate consequence of an untimely notice.

Order and Return Direction

The court FINDS that the isolated notice was first filed on March 12, 2026, day 15 after the February 25 judgment. It further FINDS that Rule 4(c), Rule 4(b)(3), clerk inaccessibility, a government notice, and any other time-shifting event do not apply.

The court FINDS neither excusable neglect nor good cause. An extension under Rule 4(b)(4) is therefore DECLINED. The court does not reopen or enlarge the 14-day period and does not deem the March 12 notice timely.

Tessa Wren shall certify this order, Serrano's statement, and the timing packet to Maela Cross for return by March 23. The district court takes no action on the merits and expresses no view about whether the government will invoke Rule 4(b), whether any invocation is timely, or whether another threshold ground exists.

SO ORDERED by Judge Elara Venn on March 20, 2026, solely within SYN-CA4-26-CR-4201-CF-DAY15-NEVER-FILED. This fictional order has no entry number in the actual district case, uses no real court system, and changes no actual judgment or appeal.